TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
APRIL 26, 2021
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Duke, Stephen Wood, Elliott Barrow, Megan Stevens, Julian Hopkins.
Absent: Beth Santilli.
Staff: Michael Robertson, Mac Deford, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Duke moved for approval. Mr. Stevens seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Wood moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Mr. Wolff continued with the agenda.

D. General Correspondence

- All correspondence received was linked to the agenda and distributed to the Board.

E. Explanation of Procedures

- Mr. Wolff explained the procedures to the public.

F. Administration of Oath

- Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-9-2021, 953 Lansing Drive, TMS# 517-03-00-025, Request for relief from the strict application of §156.007 Definitions, Building Line, to allow application of front and rear yards (setbacks) on the longer dimensions of the lot and side yard (setbacks) based on shorter dimensions of lot. The ordinance establishes front and rear yards based on the shorter dimension and side yards setbacks based on the longer dimension. Additionally, applicant seeks relief from the strict application of §156.303 (C) to allow a 9-foot encroachment of existing house into 30-foot rear yard setback.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Alan Jackson, architect for the owners, and Ms. Genie Sherard, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for approval of exhibit E, based on the findings that there is an unnecessary hardship because of existing conditions, the request does not apply to other lots, if the request were not approved it would unreasonably restrict use of property, and if approved, the request would not be a detriment to the surrounding neighborhood. Motion failed due to the lack of a second.*

- *Mr. Wood moved for approval of the request with the original setbacks and rear encroachment of the existing home. Ms. Stevens seconded the motion. All in favor.*

2. **Case V-10-2021, 153 Pondsbury Rd., TMS# 535-06-00-156. Request for relief from the strict application of §156.227 Tree Protection Zones (TPZ) to allow a six-foot encroachment into the protective zone of a 46-inch oak. The ordinance requires a 46-foot diameter protective zone.**

- Mr. Robertson stated that the applicant is requesting a deferral.

Mr. Rusty Bennett stated that the Zoning Administrator has indicated that a staff determination could be rendered and is asking for a deferral to the next meeting.

Mr. Hopkins moved for approval of the requested deferral. Mr. Duke seconded the motion. All in favor.

3. **Case V-11-2021, Ben Marino Way (formerly Recreation Way), TMS# 598-03-00-107. Request for relief from the strict application of §156.201 Bufferyards to allow elimination of required plantings in the Type B buffer along the shared 1,186 linear feet of property between the recreation site and Mount Pleasant Regional Airport-Faison Field. The 10-foot buffer area will be provided without the required plantings. (Revised Street Name, 4.20.21)**

Mr. Robertson stated that the applicant has requested a continuance for 60 days to receive information from the Aviation Authority.

Mr. Hopkins moved for approval of a continuance up to 60 days as requested. Mr. Duke seconded the motion. All in favor.

4. **Case V-12-2021, Scott & Lucas Streets, TMS# 517-16-00-034, 517-16-00-035, 517-16-00-057, 517-16-00-058. Request for relief from the strict application of §156.318 (P)(4)(b)(2)(b) to allow an additional building story. The CB-OD Boulevard Overlay District (156.318 (P)(4)(b)(2)(b)) limits buildings to three-stories.**

Mr. Barrow recused himself due to a conflict of interest.

Mr. Robertson reviewed staff comments with the Board.

Mr. William Stroud, Losse Knight, and Kevin Berry, reviewed the request with the Board.

Mr. Justin Lucey, 415 Mill Street, expressed concern with the request. He stated that the property is similar to other surrounding properties. He suggested that the request does not meet the criteria for a variance. He distributed a copy of a letter for the Board to review. He expressed

concern with flooding in the area and suggested that the project would exacerbate the flooding problems. He expressed concern that there is not sufficient parking for this project. He suggested that the additional floor is not needed and asked that the request be denied.

- Ms. Ashley Woody, 110 Friend St, suggested that this is a similar request that was proposed several years ago that was denied. She suggested that the conditions have not changed and asked that the request be denied.

- Mr. Chris Crowley, 514 Mill Street, expressed concern with this request and that it would exacerbate the existing issues with parking in the area. He suggested that there is not enough parking for the boat trailers. He also suggested that if approved, it would set a precedent for other commercial uses to have additional stories in the area as well. He suggested that the Shem Creek area should be preserved.

- Mr. Filippo Ravalico, 1044 Wharf Indigo. stated that he is opposed to the request as it would be a detriment to the public good. He suggested that the wetlands would be affected. He suggested that the area already floods and suggested that the project would exacerbate the issue. He suggested that more development in the Shem Creek area would further pollute Shem Creek. He suggested that the Shem Creek area management plan proposed less development for the area. He suggested that the hardship is self-inflicted and should not be a consideration.

- There being no further comments, Mr. Wolff closed public comments.

- Mr. Knight clarified that there would only be three stories above ground. He showed that they are consistent with the height and mass of other buildings in the area. Mr. Kevin Berry reviewed the flood zone with the Board and stated that this area is at a lower flood zone than adjacent properties. He stated that they have been working with the Town on a drainage plan and working to have a parking plan. Mr. Com Colbert stated that the goal is to have something that has a residential feel.

Mr. Robertson clarified that the pump station is Mount Pleasant Waterworks property and not owned by the Town of Mount Pleasant.

- *Mr. Wood moved for denial based on the findings that all of the criteria for a variance outlined in §156.411 must be met and items C and D have not been met. While it is the preference of the applicant to have four stories, the application of the existing ordinances would not unreasonably restrict use of the property. Likewise, as testified by the neighbors and the adjacent property owners there would be detriment to adjacent properties, to the public good, and the character of the neighborhood would be harmed. Mr. Duke seconded the motion. All in favor, with Mr. Barrow abstaining.*

5. **Case V-13-2021, 1678 Nantahala Blvd., TMS# 558-01-00-048. Request for relief from the strict application of §156.303 (C) to allow an approximately 11-foot front yard encroachment of existing house. The ordinance requires a 30-foot front yard setback.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Greg Burlos, representative for owner, and Mr. Taylor Knight, owner, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for approval based on the findings that all criteria have been satisfied, it will not be a detriment to the surrounding neighborhood, the house was constructed before the ordinance was in place, and if not approved it would unreasonably restrict the use of the property as it is currently an illegal structure. Mr. Duke seconded the motion. All in favor.*

H. Approval of Final Orders

- The Board signed final orders.

There being no further business, the meeting adjourned at 7:26 pm.

Submitted by,
L. Lynes
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